

25PSCV04078 25PSCV04078

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-07-08

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Case Number: 25PSCV04078 Hearing Date: July 8, 2026 Dept: O

Tentative Ruling

DEFENDANTS' MOTION TO DISMISS ACTION WITH PREJUDICE is DENIED; since an amended complaint is on file, a motion to strike must have been filed; notwithstanding, the complaint is timely pursuant to CCP 472b.

Background

This

case arises from a residential lease agreement. Plaintiff Daniel Medina alleges the following against Defendants: the parties entered a lease agreement in 2012; beginning on September 2023 through February 2024, Trustee, Defendant Gao engaged in a pattern of harassment, consisting to but not limited to filing an eviction lawsuit; put pressure on the Tenants to vacate the property; showing up unannounced; attempted to enter the premises unlawfully; and refused to accept rent.

On

January 12, 2025, Plaintiff DANIEL MEDINA filed suit against Defendants Gao Feng Living Trust, a legal entity, Feng Gao, an individual, a Trustee of the Feng Gao Living Trust for eighteen (18) causes of action.

On

December 26, 2025, Defendants filed a demurrer with MTS.

On

January 27, 2026, the court sustained the demurrer; the demurrer and MTS were unopposed and there was no appearance by Plaintiff. According to the minute

order, "Plaintiff [was] to file a

First

(1st) Amended Complaint by no later than end of business on February 26, 2026."

On

March 10, 2026, a first amended complaint (FAC) was filed. (The FAC states Plaintiff's address is 3158 Havenpark Ave in El Monte; the original complaint was filed bearing a Dronfield Terrace address in the city of Pacoima.)

On

March 12, 2026, a motion to dismiss was filed.

On May 6, 2026, Plaintiff filed a

'notice of change of address or other contact information' maintaining the Havenpark address is the new address.

On

June 2, 2026, Defendant filed a notice that opposition was received.

On

June 3, 2026, an opposition was filed by Plaintiff.

Discussion

Defendant

seeks to dismiss the action because Plaintiff did not file a timely complaint. The court declines to do so as the motion fails as a matter of law.

Plaintiff

is correct in that when there is an amended complaint on file, the proper procedure is to first strike the amended complaint for the failure to file in conformity with the law (i.e., untimely) and then dismiss the action pursuant to CCP section 581(f)(2). As explained by the court in *Gitmed v. General Motors Corp.* (1994) 26 Cal.App.4th 824, "the filing of the amended complaint prevented the trial court from entertaining the motion to dismiss," and that "[t]he proper procedure would have been for the defendant to bring a motion to strike the amendment before moving to dismiss the complaint," after which the court "could then have chosen to exercise its discretion to strike the amendment as untimely and thereafter entertained a motion to

dismiss.” (Id. at p. 828.)

Even

assuming that a motion to strike was filed, Plaintiff is correct on another front: his amended complaint is timely. Under Code of Civil Procedure section 472b, the time to amend therefore did not begin to run until service of the Notice of Ruling, not from the date of the hearing. Defendants served that Notice by mail on February 3, 2026; the Court's thirty-day grant thus ran from February 3, 2026, and because service was by mail within California, that period was extended five calendar days. (Code Civ. Proc., § 1013, subd. (a).) Thirty days from February 3, 2026, plus five days for mailing, is March 10, 2026 — the exact day Plaintiff filed his First Amended Complaint.

No reply/'supplemental' reply have been filed for Defendant to rebut the foregoing.

Conclusion

Based

on the foregoing, the motion is denied.